

1 **COURT OF APPEALS NO. 84450-4**
2 **IN THE COURT OF APPEALS**
3 **DIVISION 1**
4 **OF THE STATE OF WASHINGTON**
5

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7
8 **ZACKARIAH BENNETT**

9 **Appellant**

10
11 **and**

12
13 **MELVINA MANNING**

14 **Respondent**
15
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17
18 **MOTION REQUESTING**
19 **JUDICIAL NOTICE**
20 **(ER201)**
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1 Honorable Court of Appeals, I respectfully move this
2 Honorable Court for an order taking judicial notice of the
3 following seven adjudicative facts which are directly
4 relevant to the matter currently before this Court, in
5 accordance with ER 201.

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7 As stated by Justice Hazelrigg:

8
9 1. *"Former chapter 26.50 RCW (2019) was*
10 *repealed by the Laws of 2021, ch. 215, § 170 but*
11 *was the chapter that pertained to domestic*
12 *violence prevention at the time the DVPO was*
13 *ordered, while chapter 7.105 RCW continues to*
14 *govern civil protection orders."*¹

15 And:

16 2. *"(. . .)the court granted the DVPO and set the*
17 *expiration one year from the issuance date. It*
18 *found that the "unlawful harassment" component*
19 *of domestic violence was most relevant to the*
20 *circumstances(. . .)"*²

21
22
23 From former chapter 26.50 RCW (2019):

24 3. *"Domestic violence" means: (a) Physical harm,*
25 *bodily injury, assault, or the infliction of fear of*
26 *imminent physical harm, bodily injury or assault,*
27 *sexual assault, or stalking as defined in RCW*
28 *9A.46.110 of one intimate partner by another*
29 *intimate partner; or (b) physical harm, bodily*
30 *injury, assault, or the infliction of fear of imminent*
31 *physical harm, bodily injury or assault, sexual*
32 *assault, or stalking as defined in RCW 9A.46.110*

¹ Mar. 11, 2024 Decision, page-2, footnote-3 [84450-4]

² Id, page-2, paragraph-2

1 *of one family or household member by another*
2 *family or household member.”*³
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5 From the originating petition:

6 4. *““Domestic violence” means physical harm,*
7 *bodily injury, assault, including sexual assault,*
8 *stalking, **Or** inflicting fear of imminent physical*
9 *harm, bodily injury or assault between family or*
10 *household members.”*
11

12 5. Unlawful Harassment was **not** a component of
13 domestic violence **until** the governing statute
14 [26.50 RCW (2019)] was repealed by the Laws of
15 2021, ch. 215, § 170.
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19 Those five adjudicative facts clearly show **prima facie**
20 **error of law** on their own, deserving of dismissal and
21 vacatur of the lower court judgement.
22

23 Fact#1, #3, and #4 convey the same statutes provided to
24 the lower court in the Motion to Dismiss filed on the 15th
25 of July 2022.⁴
26
27

28 Lastly, I refer back to the judgement of the lower court:

29 6. The court defined *“Unlawful harassment, as our*
30 *law defines it, means a **knowing and willful***
31 ***course of conduct directed as a specific***
32 ***person that seriously alarms, annoys,***
33 ***harasses, or is detrimental to such person***

³ 26.50.010(3) RCW (2019) ~ (Effective until July 1, 2022)

⁴ C.P. at 27-30

1 ***and*** that serves no legitimate or lawful purpose.
2 The course of conduct must be such as would
3 cause a reasonable person to suffer substantial
4 emotional distress and must actually cause
5 substantial emotional distress to the petitioner.”⁵
6

7 To which the court found:

8 7. “I didn’t find that that -- that the respondent’s
9 conduct here was designed to alarm, annoy, or
10 harass the petitioner. I think the respondent is
11 focused on getting access to the child, and I don’t
12 think that his intention is to alarm, annoy, or
13 harass the petitioner. So I -- ***I didn’t find that***
14 ***that one -- that factor was applicable.***”⁶
15

16 That “factor” in Fact#7 is an element required by statute
17 as an essential component of domestic violence unlawful
18 harassment as enacted by the Laws of 2021, ch. 215, § 170
19 (effective July 1st 2022).
20

21 The standard of review on issues of law is de novo.
22

23 "If a court grants relief, which under the
24 circumstances it hasn't any authority to grant, its
25 judgment is to that extent void."
26 (1Freeman on Judgments, 120c.) An illegal order is
27 forever void.
28

29 "A judgment which is void upon its face, and which
30 requires only an inspection of the judgment roll to
31 demonstrate its wants of vitality is a dead limb upon the
32 judicial tree, which should be lopped off, if the power to

⁵ RP, pg-53, lines 13-21(emphasis added)

⁶ RP, pg-54 line-20 (emphasis added)

1 *do so exists." People v. Greene, 71 Cal. 100 [16 Pac. 197, 5*
2 *Am. St. Rep. 448].*

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6 *WHEREFORE, I, Zackariah Bennett, petitioner,*
7 *respectfully request that this Honorable Court grant this*
8 *motion and take judicial notice of the referenced*
9 *adjudicative facts as set forth in ER201.*

10
11 *Respectfully submitted,*
12 *Under penalty of perjury,*
13 *Zackariah Bennett*

14 

15 *04/17/2024*

16
17
18 665 words